

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 2

☐ COMMITTEE AMENDMENT

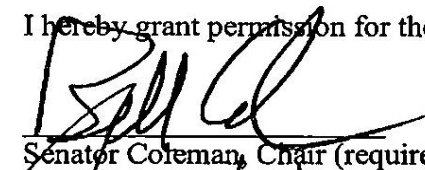
(Date)

I move to amend House Bill No. 1047, by substituting the attached floor substitute (Request # 3967) for the title, enacting clause and entire body of the measure.

Submitted by:


Senator Coleman

I hereby grant permission for the floor substitute to be adopted.

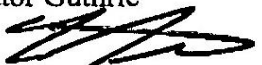

Senator Coleman, Chair (required)


Senator Alvord

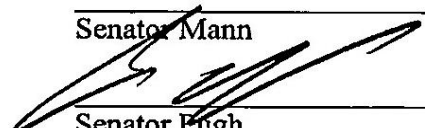
Senator Brooks

Senator Grellner

Senator Guthrie


Senator Paxton, President Pro Tempore

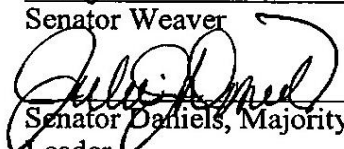
Senator Mann


Senator Fugh

Senator Reinhardt

Senator Standridge


Senator Weaver


Senator Daniels, Majority Floor Leader

Note: Business and Insurance committee majority requires six (6) members' signatures.

Coleman-CAD-FS-HB1047

4/20/2026 3:57 PM

(Floor Amendments Only)

Date and Time Filed: 4.21.26 AC 11:43AM

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 1047

By: Luttrell of the House

and

Coleman of the Senate

FLOOR SUBSTITUTE

[gaming licenses - exception - Model Tribal Gaming
Compact - fees - covered games - supplement -
prohibited actions - exclusivity - accounting and
administration - copy of executed supplement - action
- codification - effective date]

~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

SECTION 1. AMENDATORY 3A O.S. 2021, Section 262, is
amended to read as follows:

Section 262. A. If at least four Indian tribes enter into the
model tribal-state compact set forth in Section 281 of this title,
and such compacts are approved by the Secretary of the Interior and
notice of such approval is published in the Federal Register, the
Oklahoma Horse Racing Commission ("Commission") shall license
organization licensees which are licensed pursuant to Section 205.2
of this title to conduct authorized gaming as that term is defined

1 by this act pursuant to this act utilizing gaming machines or
2 devices authorized by this act subject to the limitations of
3 subsection C of this section. No fair association or organization
4 licensed pursuant to Section 208.2 of this title or a city, town or
5 municipality incorporated or otherwise, or an instrumentality
6 thereof, may conduct authorized gaming as that term is defined by
7 this act.

8 Notwithstanding the provisions of Sections 941 through 988 of
9 Title 21 of the Oklahoma Statutes, the conducting of and
10 participation in gaming in accordance with the provisions of this
11 act or the model compact set forth in Section 281 of this title is
12 lawful and shall not be subject to any criminal penalties. Provided
13 further, a licensed manufacturer or distributor licensed pursuant to
14 this act may manufacture, exhibit or store as a lawful activity any
15 machines or devices which are capable of being used to conduct the
16 following types of gaming:

- 17 1. Gaming authorized by the State-Tribal Gaming Act; or
- 18 2. Other gaming which may be lawfully conducted by an Indian
19 tribe in this state.

20 B. Except for Christmas Day, authorized gaming may only be
21 conducted by an organization licensee on days when the licensee is
22 either conducting live racing or is accepting wagers on simulcast
23 races at the licensee's racing facilities. Authorized gaming may
24 only be conducted by organization licensees at enclosure locations

1 where live racing is conducted. Under no circumstances shall
2 authorized gaming be conducted by an organization licensee at any
3 facility outside the organization licensee's racing enclosure. No
4 person who would not be eligible to be a patron of a pari-mutuel
5 system of wagering pursuant to the provisions of subsection B of
6 Section 208.4 of this title shall be admitted into any area of a
7 facility when authorized games are played nor be permitted to
8 operate, or obtain a prize from, or in connection with, the
9 operation of any authorized game, directly or indirectly.

10 C. In order to encourage the growth, sustenance and development
11 of live horse racing in this state and of the state's agriculture
12 and horse industries, the Commission is hereby authorized to issue
13 licenses to conduct authorized gaming to no more than three
14 organization licensees operating racetrack locations at which horse
15 race meetings with pari-mutuel wagering, as authorized by the
16 Commission pursuant to the provisions of this title, occurred in
17 calendar year 2001, as follows:

18 1. An organization licensee operating a racetrack location at
19 which an organization licensee is licensed to conduct a race meeting
20 pursuant to the provisions of Section 205.2 of this title located in
21 a county with a population exceeding six hundred thousand (600,000)
22 persons, according to the most recent Federal Decennial Census,
23 shall be licensed to operate not more than six hundred fifty (650)
24 player terminals in any year. Beginning with the third year after

1 an organization licensee is licensed pursuant to this paragraph to
2 operate such player terminals, such licensee may be licensed to
3 operate an additional fifty (50) player terminals. Beginning with
4 the fifth year after an organization licensee is licensed pursuant
5 to this paragraph to operate such player terminals, such licensee
6 may be licensed to operate a further additional fifty (50) player
7 terminals; and

8 2. Two organization licensees operating racetrack locations at
9 which the organization licensees are licensed to conduct race
10 meetings pursuant to the provisions of Section 205.2 of this title
11 located in counties with populations not exceeding four hundred
12 thousand (400,000) persons, according to the most recent Federal
13 Decennial Census, may each be licensed to operate not more than two
14 hundred fifty (250) player terminals in any year.

15 Subject to the limitations on the number of player terminals
16 permitted to each organization licensee, an organization licensee
17 may utilize electronic amusement games as defined in this act,
18 electronic bonanza-style bingo games as defined in this act and
19 electronic instant bingo games as defined in this act, and any type
20 of gaming machine or device that is specifically allowed by law and
21 that an Indian tribe in this state is authorized to utilize pursuant
22 to a compact entered into between the state and the tribe in
23 accordance with the provisions of the Indian Gaming Regulatory Act
24 and any other machine or device that an Indian tribe in this state

1 is lawfully permitted to operate pursuant to the Indian Gaming
2 Regulatory Act, referred to collectively as "authorized games". An
3 organization licensee's utilization of such machines or devices
4 shall be subject to the regulatory control and supervision of the
5 Commission; provided, the Commission shall have no role in oversight
6 and regulation of gaming conducted by a tribe subject to a compact.
7 The Commission shall promulgate rules to regulate the operation and
8 use of authorized gaming by organization licensees. In promulgating
9 such rules, the Commission shall consider the provisions of any
10 compact which authorizes electronic gaming which is specifically
11 authorized by law by an Indian tribe. For the purpose of paragraphs
12 1 and 2 of this subsection, the number of player terminals in an
13 authorized game that permits multiple players shall be determined by
14 the maximum number of players that can participate in that game at
15 any given time; provided, however, that nothing in this act
16 prohibits the linking of player terminals for progressive jackpots,
17 so long as the limitations on the number of permitted player
18 terminals at each organization licensee are not exceeded. Each
19 organization licensee shall keep a record of, and shall report at
20 least quarterly to the Oklahoma Horse Racing Commission, the number
21 of games authorized by this section utilized in the organization
22 licensee's facility, by the name or type of each and its identifying
23 number.

1 D. No zoning or other local ordinance may be adopted or amended
2 by a political subdivision where an organization licensee conducts
3 live horse racing with the intent to restrict or prohibit an
4 organization licensee's right to conduct authorized gaming at such
5 location.

6 E. For purposes of this act, "adjusted gross revenues" means
7 the total receipts received by an organization licensee from the
8 play of all authorized gaming minus all monetary payouts.

9 F. The Oklahoma Horse Racing Commission shall promulgate rules
10 to regulate, implement and enforce the provisions of this act with
11 regard to the conduct of authorized gaming by organization
12 licensees; provided, regulation and oversight of games covered by a
13 compact and operated by an Indian tribe shall be conducted solely
14 pursuant to the requirements of the compact.

15 G. If an organization licensee operates or attempts to operate
16 more player terminals which offer authorized games than it is
17 authorized to offer to the public by this act or the terms of its
18 license, upon written notice from the Commission, such activity
19 shall cease forthwith. Such activity shall constitute a basis upon
20 which the Commission may suspend or revoke the licensee's license.
21 The Commission shall promulgate any rules and regulations necessary
22 to enforce the provisions of this subsection.

23 H. This act is game-specific and shall not be construed to
24 allow the operation of any other form of gaming unless specifically

1 allowed by this act. This act shall not permit the operation of
2 slot machines, house-banked card games, house-banked table games
3 involving dice or roulette wheels, or ~~games where winners are~~
4 ~~determined by~~ wagering on the outcome of a sports contest; provided,
5 however, wagering on the outcome of a sports contest may be
6 conducted in accordance with Section 280.2 of this title.

7 SECTION 2. AMENDATORY 3A O.S. 2021, Section 280, is
8 amended to read as follows:

9 Section 280. The State of Oklahoma through the concurrence of
10 the Governor after considering the executive prerogatives of that
11 office and the power to negotiate the terms of a compact between the
12 state and a tribe, and by means of the execution of the State-Tribal
13 Gaming Act, and with the concurrence of the ~~State~~ Legislature
14 through the enactment of the State-Tribal Gaming Act, hereby makes
15 the following offer of a model tribal gaming compact regarding
16 gaming to all federally recognized Indian tribes as identified in
17 the Federal Register within this state that own or are the
18 beneficial owners of Indian lands as defined by the Indian Gaming
19 Regulatory Act, 25 U.S.C., Section 2703(4), and over which the tribe
20 has jurisdiction as recognized by the Secretary of the Interior and
21 is a part of the tribe's "Indian reservation" as defined in 25
22 C.F.R., Part 151.2 or has been acquired pursuant to 25 C.F.R., Part
23 151, which, if accepted, shall constitute a gaming compact between
24 this state and the accepting tribe for purposes of the Indian Gaming

1 Regulatory Act. Acceptance of the offer contained in this section
2 shall be through the signature of the chief executive officer of the
3 tribal government whose authority to enter into the compact shall be
4 set forth in an accompanying law or ordinance or resolution by the
5 governing body of the tribe, a copy of which shall be provided by
6 the tribe to the Governor. No further action by the Governor or the
7 state is required before the compact can take effect. A tribe
8 accepting this Model Tribal Gaming Compact is responsible for
9 submitting a copy of the Compact executed by the tribe to the
10 Secretary of the Interior for approval and publication in the
11 Federal Register. The tribe shall provide a copy of the executed
12 Compact to the Governor. No tribe shall be required to agree to
13 terms different than the terms set forth in the Model Tribal Gaming
14 Compact, which is set forth in Section 281 of this title. As a
15 precondition to execution of the Model Tribal Gaming Compact by any
16 tribe, the tribe must have paid or entered into a written agreement
17 for payment of any fines assessed prior to the effective date of the
18 State-Tribal Gaming Act by the federal government with respect to
19 the tribe's gaming activities pursuant to the Indian Gaming
20 Regulatory Act.

21 Notwithstanding the provisions of Sections 941 through 988 of
22 Title 21 of the Oklahoma Statutes, the conducting of and the
23 participation in any game authorized by the model compact set forth
24

1 in Section 281 of this title are lawful when played pursuant to a
2 compact which has become effective.

3 1. Prior to July 1, 2008, of all fees received by the state
4 pursuant to subsection A of Part 11 of the Model Tribal Gaming
5 Compact set forth in Section 281 of this title:

- 6 a. twelve percent (12%) shall be deposited in the
7 Oklahoma Higher Learning Access Trust Fund, and
- 8 b. eighty-eight percent (88%) of such fees shall be
9 deposited in the Education Reform Revolving Fund.

10 2. On or after July 1, 2008, of all fees received by the state
11 pursuant to subsection A of Part 11 of the Model Tribal Gaming
12 Compact set forth in Section 281 of this title and the Gaming
13 Compact ~~Supplements~~ Supplement offered pursuant to Section ~~2~~ 280.1
14 of this ~~act~~ title:

- 15 a. twelve percent (12%) shall be deposited in the General
16 Revenue Fund, and
- 17 b. eighty-eight percent (88%) of such fees shall be
18 deposited in the Education Reform Revolving Fund.

19 3. On or after November 1, 2026, of all fees received by the
20 state pursuant to the provisions of Section 280.2 of this title that
21 are not derived from any wager placed in connection with any event
22 sanctioned by the National Basketball Association, including the
23 Women's National Basketball Association and any other affiliated
24 association or league thereof:

- 1 a. forty percent (40%) of such fees, but in no event more
2 than Seven Million Dollars (\$7,000,000.00) in any
3 calendar year, shall be deposited into the Global
4 Marketing of Oklahoma Tourism Through Professional
5 Sports Revolving Fund established pursuant to Section
6 85.72 of Title 74 of the Oklahoma Statutes, and
7 b. the remaining portion of such fees shall be deposited
8 into the Supporting Programs, Opportunities,
9 Resources, and Teams Fund established pursuant to
10 Section 85.73 of Title 74 of the Oklahoma Statutes and
11 shall be divided equally amongst all public
12 institutions of higher education within this state
13 classified as Research 1 by the Carnegie
14 Classification of Institutions of Higher Education
15 that compete in National Collegiate Athletic
16 Association Division 1 Athletics.

17 4. On or after November 1, 2026, all fees received by the state
18 pursuant to the provisions of Section 280.2 of this title that are
19 derived from any wager placed in connection with any event
20 sanctioned by the National Basketball Association, including the
21 Women's National Basketball Association and any other affiliated
22 association or league thereof, shall be deposited into the Strong
23 Readers Revolving Fund upon the enrollment of Senate Bill No. 1778
24 of the 2nd Session of the 60th Oklahoma Legislature.

1 ~~Provided~~ 5. Notwithstanding the provisions of this section, the
2 ~~first Twenty Thousand Eight Hundred Thirty-three Dollars and thirty-~~
3 ~~three cents (\$20,833.33)~~ Twenty-five Thousand Dollars (\$25,000.00)
4 of all fees received each month by the state pursuant to subsection
5 A of Part 11 of the Model Tribal Gaming Compact set forth in Section
6 281 of this title and the Gaming Compact Supplements offered
7 pursuant to Section ~~2~~ 280.1 and Section 280.2 of this ~~act~~ title
8 shall be transferred to the Department of Mental Health and
9 Substance Abuse Services for the treatment of compulsive gambling
10 disorder and educational programs related to such disorder.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 280.2 of Title 3A, unless there
13 is created a duplication in numbering, reads as follows:

14 A. Pursuant to the offer of the Model Tribal Gaming Compact
15 found in Section 280 of Title 3A of the Oklahoma Statutes and the
16 definition of covered games in the Model Tribal Gaming Compact
17 codified in Section 281 of Title 3A of the Oklahoma Statutes, which
18 such codified compact offer provides, the state may approve
19 additional forms of covered games under such compact by amendment of
20 the State-Tribal Gaming Act, and a compacting tribe may operate such
21 additional forms of covered games by written supplement to an
22 existing compact, the state hereby approves, subject to the
23 provisions of this section, the three additional game offerings as
24 follows:

- 1 1. Retail sports betting;
- 2 2. Remote sports betting; and
- 3 3. Competitive sports betting.

4 B. Should a tribe that has compacted with the state in
5 accordance with Sections 280 and 281 of Title 3A of the Oklahoma
6 Statutes elect to accept this offer of additional covered games and,
7 accordingly, to operate retail sports betting, remote sports
8 betting, and/or competitive sports betting under the terms of its
9 existing gaming compact with the state, such tribe shall execute a
10 supplement to such compact, to provide, as follows:

11 "MODEL TRIBAL GAMING COMPACT SUPPLEMENT

12 Between the [Name of Tribe]

13 and the STATE OF OKLAHOMA

14 To be governed in accord with the [Name of Tribe]'s State-Tribal
15 Gaming Compact ("Compact"), approved by the United States Department
16 of the Interior on [Date], the [Name of Tribe] ("Tribe") accepts the
17 State's offer of three additional covered games codified in Section
18 280.2 of Title 3A of the Oklahoma Statutes, which offer and this
19 acceptance are subject to the following terms:

20 Part 1. TITLE.

21 This document shall be referred to as the [Name of Tribe] and
22 State of Oklahoma Gaming Compact Sports Betting Games Supplement
23 ("Gaming Compact Supplement").

24 Part 2. DEFINITIONS.

As used in this Gaming Compact Supplement:

1. "Adjusted transaction total" means the gross sports betting transaction total less:

- a. winnings returned to patrons on those wagers,
- b. voided wagers,
- c. free play or other promotional credits and marketing expenses, not to exceed forty percent (40%) of the gross sports betting transaction total less winnings returned to patrons on those wagers,
- d. generally accepted operating costs, and
- e. any federal excise tax;

2. "Competitive sports betting" means any sports betting conducted on a mobile device on non-Indian lands or, upon lawful consent, the Indian lands in this state of another Indian tribe that has entered into a gaming compact supplement set forth in Section 280.2 of Title 3A of the Oklahoma Statutes. All such sports betting shall be deemed at all times to take place at a facility or facilities of the Tribe where the server accepting the wagers is located;

3. "Generally accepted operating costs" means any of the following costs, to the extent applicable, if directly and solely associated with the operation of sports betting games including, but not limited to, payment processor fees, geolocation fees, and anti-

1 money laundering compliance program costs, including know-your-
2 customer checks;

3 4. "Historic reservation lands" means any lands located in a
4 former reservation, pursuant to 25 U.S.C., Section 2719(a)(2)(A)(i),
5 excluding Indian lands as defined by 25 U.S.C., Section 2703;

6 5. "Non-Indian lands" means any lands in this state that are
7 neither Indian lands nor historic reservation lands;

8 6. "Remote sports betting" means any sports betting conducted
9 on a mobile device on the Indian lands of the Tribe or the historic
10 reservation lands within which the Tribe resides. With respect to
11 wagers placed on historic reservation lands, such sports betting
12 shall be deemed at all times to take place at a facility or
13 facilities of the Tribe where the server accepting the wagers is
14 located;

15 7. "Retail sports betting" means any in-person sports betting
16 requiring a patron to be physically present at a facility of the
17 Tribe, whether such in-person wagering is conducted on a mobile
18 device or otherwise;

19 8. "Sports betting" means wagering on the outcome of sporting
20 events or a portion or portions of sporting events, including future
21 or propositional events within such sporting events, or the
22 individual performance statistics of an athlete or athletes in
23 sporting events, or any combination thereof, other than elementary
24 or secondary school sporting events, sporting events where a

majority of the athletes are under eighteen (18) years old, and
horse or other animal races; and

9. "Sports betting games" means the three covered games offered
pursuant to this Model Tribal Gaming Compact Supplement: retail
sports betting, remote sports betting, and competitive sports
betting.

Part 3. TERMS.

A. The Tribe hereby memorializes its election to accept the
State's offer of sports betting games, as defined in Part 2 of this
Model Tribal Gaming Compact Supplement. The Tribe further certifies
and agrees it shall not:

1. Offer retail sports betting until approval of this Gaming
Compact Supplement by the Secretary of the Interior and notice of
such approval is published in the Federal Register;

2. Offer remote sports betting until after at least five Indian
tribes enter into a gaming compact supplement set forth in Section
280.2 of Title 3A of the Oklahoma Statutes, and such compact
supplements are approved by the Secretary of the Interior and notice
of such approval is published in the Federal Register; or

3. Offer competitive sports betting until the requirements of
subsection D of this Part have been satisfied.

B. 1. So long as the State does not permit the operation of
any form of sports wagering or any form of mobile gaming by any
person or entity other than a federally recognized Indian tribe

1 operating such sports wagering or other mobile gaming pursuant to
2 the Indian Gaming Regulatory Act and Section 281 of Title 3A of the
3 Oklahoma Statutes, or violates either subsection A or subsection E
4 of Part 11 of the Compact, the Tribe agrees, subject to the
5 enforcement and exclusivity provisions of its Compact, to pay to the
6 State a fee derived from sports betting games revenues calculated as
7 set forth in paragraph 2 of this subsection. Such fee shall be paid
8 no later than the twentieth day of the month for revenues received
9 by the Tribe in the preceding month. In addition to the Tribe's
10 existing exclusivity with respect to any additional electronic or
11 machine gaming, the Tribe and State acknowledge the State's
12 meaningful concession of additional exclusivity to the Tribe,
13 through the authorization of retail sports betting, remote sports
14 betting, and competitive sports betting as three additional covered
15 games, and the substantial economic benefit to the Tribe to be
16 derived from such betting.

17 2. The fee submitted to the state shall be eight percent (8%)
18 of the monthly adjusted transaction total received by a Tribe in a
19 calendar year from the play of sports betting games.

20 3. Payment of such fee shall be made to the State Treasurer
21 and, in doing so, the Tribe agrees to delineate the portion of such
22 fees derived from any wager placed in connection with any event
23 sanctioned by the National Basketball Association, including the
24 Women's National Basketball Association and any other affiliated

1 association or league of such associations. Nothing in this act
2 shall require the allocation of such fee to particular state
3 purposes including, but not limited to, the actual costs of
4 performing the State's regulatory responsibilities. For all
5 purposes, such payment shall be deemed the exclusivity and fee
6 payment under paragraph 2 of subsection A of Part 11 of the Compact
7 between the Tribe and the State with respect to sports betting
8 games.

9 C. In any month in which the Tribe offers competitive sports
10 betting at any time, the Tribe agrees to donate, on a quarterly
11 basis, three percent (3%) of the adjusted transaction total from
12 competitive sports betting, to be split in equal shares among those
13 tribes in this state that:

14 1. Enter into a gaming compact supplement set forth in Section
15 280.2 of Title 3A of the Oklahoma Statutes, and such compact
16 supplement is approved by the Secretary of the Interior and notice
17 of such approval is published in the Federal Register; and

18 2. Do not offer competitive sports betting at any time during
19 the same month.

20 D. At any time following the satisfaction of the condition
21 contained in paragraph 2 of subsection A of this Part, the Oklahoma
22 Indian Gaming Association, or a successor entity, through its board,
23 shall procure an entity at its discretion to facilitate the
24 accounting and administration of the tribal contribution and sharing

1 pursuant to subsection C of this Part, provided that the continued
2 retention of such an entity, subject to change and any such
3 reasonable terms as the Oklahoma Indian Gaming Association, or a
4 successor entity, may determine, shall remain a prerequisite to the
5 Tribe's conducting of competitive sports betting. The State and
6 Tribe agree that the provisions of this subsection and subsection C
7 of this Part establish rights and duties of the Tribe exclusively,
8 with respect to any other Indian tribe in this state entering into a
9 gaming compact supplement set forth in Section 280.2 of Title 3A of
10 the Oklahoma Statutes.

11 E. The Tribe's operation of sports betting games pursuant to
12 this Gaming Compact Supplement shall, for all purposes, including
13 enforcement and exclusivity, be treated as subject to and lawfully
14 conducted under the terms and provisions of the Compact.

15 Part 4. AUTHORITY TO EXECUTE.

16 This Gaming Compact Supplement, to the extent it conforms with
17 Section 280.2 of Title 3A of the Oklahoma Statutes, shall be deemed
18 approved by the State of Oklahoma. No further action of the State
19 or any state official is necessary for this Gaming Compact
20 Supplement to take effect upon approval by the Secretary of the
21 United States Department of the Interior and publication in the
22 Federal Register. The undersigned tribal official represents that
23 he or she is duly authorized and has the authority to execute this
24

1 Gaming Compact Supplement on behalf of the Tribe for whom he or she
2 is signing.

3 APPROVED:

4 [Name of Tribe]

5 _____ Date: _____

6 [Title]"

7 C. A tribe electing to accept these additional game offerings
8 shall be responsible for submitting a copy of the executed
9 supplement to the Secretary of the United States Department of the
10 Interior for approval and publication in the Federal Register.

11 D. Upon approval of a supplement by the Secretary of the United
12 States Department of the Interior, such supplement shall be
13 construed as an acceptance of this offer and a supplement to the
14 tribe's existing Compact with the state. Thereafter, sports betting
15 games shall be deemed covered games pursuant to such Compact, and
16 the tribe may offer such additional covered games upon satisfaction
17 of the provisions of subsection A of Part 3 of such supplement.

18 E. The offer contained in this section shall not be construed
19 to permit the operation of any additional form of gaming by
20 organization licensees or to permit any additional electronic or
21 machine gaming within this state.

22 F. Notwithstanding the provisions of Sections 941 through 988
23 of Title 21 of the Oklahoma Statutes, the conducting of and
24 participation in sports betting games pursuant to this section are

1 lawful when played pursuant to a compact supplement that has become
2 effective in accordance with this section.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 85.72 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund
7 for the Office of Management and Enterprise Services to be
8 designated the "Global Marketing of Oklahoma Tourism Through
9 Professional Sports Revolving Fund". The fund shall be a continuing
10 fund, not subject to fiscal year limitations, and shall consist of
11 all monies transferred thereto by act of the Legislature and any
12 monies which may be deposited thereto as provided for by law. All
13 monies accruing to the credit of the fund are hereby appropriated
14 and shall be budgeted and expended through the awarding of one or
15 more grants to a professional sports team that is part of the
16 National Basketball Association and located in a county in this
17 state with a population exceeding six hundred thousand (600,000) for
18 the purposes of economic development, job training, community
19 improvement, regional tourism assistance or new tourism attraction
20 creation, including capital improvements or debt service support in
21 connection therewith, tourism marketing separate from or in
22 connection with an agency of this state, supplemental educational or
23 vocational programs in science, technology, engineering, arts, or
24 mathematics, public safety, other projects in this state in the

1 public interest, or other team business operations. The grant
2 awards expended from the fund shall not be subject to state agency
3 approval, competitive grant processes, or any other discretionary
4 evaluation, other than those provided for in this section. All
5 expenditures from the fund shall be made to the professional sports
6 team grantee upon warrants issued by the State Treasurer against
7 claims filed as prescribed by law with the Director of the Office of
8 Management and Enterprise Services for approval and payment.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 85.73 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 There is hereby created in the State Treasury a revolving fund
13 for the Office of Management and Enterprise Services to be
14 designated the "Supporting Programs, Opportunities, Resources, and
15 Teams Fund". The fund shall be a continuing fund, not subject to
16 fiscal year limitations, and shall consist of all monies transferred
17 thereto by act of the Legislature and any monies which may be
18 deposited thereto as provided for by law. All monies accruing to
19 the credit of the fund are hereby appropriated and shall be budgeted
20 and expended for distribution to athletic departments at public
21 institutions of higher education within this state for the benefit
22 of student athletes. For the purposes of this section, "benefit"
23 means scholarships, insurance, medical coverage, facility
24 enhancements, and litigation settlement fees. Each public

1 institution of higher education shall establish eligibility criteria
2 for benefits awarded pursuant to the provisions of this section.

3 SECTION 6. This act shall become effective November 1, 2026.

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5 60-2-3967 CAD 4/21/2026 12:29:14 PM

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